

1 **SENATE FLOOR VERSION**

2 April 9, 2026

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL NO. 4246

By: Kannady of the House

and

6 Green of the Senate

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9 An Act relating to waters and water rights; amending
10 27A O.S. 2021, Section 2-6-103.1, which relates to
11 contracts for technical assistance programs;
12 authorizing the Department of Environmental Quality
13 to contract with certain vendors; authorizing certain
14 use of funds; stating how contracts shall be awarded;
15 authorizing promulgation of rules and regulations;
16 and providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-6-103.1,
19 is amended to read as follows:

20 Section 2-6-103.1. A. The Department of Environmental Quality
21 may, to the extent funds are available, contract with the Oklahoma
22 Rural Water Association and technically qualified vendors, as
23 defined in the Department's regulations, for technical assistance
24 programs to rural water and wastewater system operators throughout
the state. The Department may use a portion of the funds
appropriated for grants and assistance programs to rural water and

1 small systems to contract with technically qualified vendors to
2 provide technical assistance programs to rural water and wastewater
3 system operators throughout the state. Assistance in response to
4 drinking water or wastewater emergencies is also eligible. The
5 Department may contract with other nonprofit entities in addition to
6 the Oklahoma Rural Water Association or technically qualified
7 vendors for this purpose if the Department, in its discretion,
8 determines that those entities can and will provide equally
9 effective and efficient technical assistance services to rural water
10 and wastewater system operators throughout the state. Contracts
11 shall be awarded to the lowest and best, or best value, bidder or
12 bidders. The exceptions and exemptions to the Oklahoma Central
13 Purchasing Act shall not apply to the contracts awarded under this
14 section.

15 B. The Environmental Quality Board shall promulgate rules and
16 regulations for the Department of Environmental Quality that define
17 the technical qualifications of vendors and to carry out the
18 provisions of this section.

19 SECTION 2. This act shall become effective November 1, 2026.

20 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
21 April 9, 2026 - DO PASS AS AMENDED BY CS
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